

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2012-003726

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE APPLICATION FOR CERTIFICATE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF JEFFREY SZALAY,
LPC NO. (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Jeffrey Szalay ("Applicant") as follows:

1. By application dated January 11, 2012, Applicant applied for licensure to practice as a Professional Counselor ("LPC") in the State of Colorado.
2. The Board has jurisdiction over Applicant and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of Applicant's initial application for licensure as a LPC in the State of Colorado without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2012-003726. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.
4. Applicant admits the following:
 - a. On or about January 11, 2012, Applicant applied for LPC licensure in the State of Colorado, and his license request is currently pending.
 - b. On Applicant's application for LPC licensure, Applicant answered "yes" to question 6 which states: "Have you ever received a deferred judgment or been convicted of or pled nolo contendere to a violation of any federal, state, or local law relating to the manufacture, distribution or dispensing of a controlled substance, or relating to drug abuse, including alcohol?"
 - c. On Applicant's application for LPC licensure, Applicant answered "yes" to question 7 which states: "Have you ever received a deferred judgment or been

convicted of or pled nolo contendere to any felony in any state, territory, district, the U.S., or foreign country?"

- d. On Applicant's application for LPC licensure, Applicant answered "yes" to question 10 which states: "Do you now abuse or excessively use, or have you in the last five years abused or excessively used, any habit forming drug, including alcohol, or any controlled substance that has a) resulted in any accusation or discipline for misconduct, unreliability, neglect of work, or failure to meet professional responsibilities; or b) affected your ability to practice psychotherapy safely and competently?"
- e. Applicant has admitted to a history of and treatment for alcohol abuse and addiction.

5. By virtue of the facts admitted in paragraph 4 above, Applicant admits and the Board finds that the above conduct is a violation of §12-43-222(1)(e), C.R.S.

6. The Board is authorized by §§12-43-203(3)(c) and 12-43-212, C.R.S., to grant Applicant a license. The Board is authorized to impose probation with conditions pursuant to §12-43-224(3)(c), C.R.S. The Board hereby grants a license to Applicant subject to the terms and conditions outlined below. Applicant consents to the following limitations to his license within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by consenting to this license with limitations in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant's license to practice professional counseling in the State of Colorado is hereby placed on probation for three (3) years commencing from the effective date of this Order, or from the date Applicant's therapist is approved, whichever date is later. During the probationary period, Applicant shall be bound by the terms and restrictions set forth in this Order. If at any time Applicant is not in compliance with the terms and restrictions of probation, including having a therapist in place, Applicant shall cease the practice of professional counseling.

8. The period of probation is tolled during any time that Applicant is not practicing in the State of Colorado, and such period of probation shall resume at such time as Applicant resumes practicing in the State of Colorado in accordance with this Order.

9. Applicant shall report to the Board if he discontinues the practice of professional counseling, and Applicant shall notify the Board upon resuming the practice of professional counseling.

10. Credit toward the period of probation will be given only for the period of time during which Applicant is practicing as a LPC in the State of Colorado, is undergoing psychotherapy, and is in full compliance with all terms of this Order.

11. If, at the end of the probationary period, Applicant has adhered to all terms and conditions of this Order, Applicant may request termination of probation. Request for termination of probation must be made in writing to the Board, and Applicant is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

PSYCHOTHERAPY

12. Applicant shall undergo psychotherapy with a Domestic Violence Offender Management Board (DVOMB) approved mental health provider approved by the Board ("therapist") as a term of probation. The therapist shall conduct therapy and report to the Board in writing as follows:

- a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once a week, unless otherwise approved by the Board based on recommendations of the therapist; and
- b. The therapist shall report to the Board in writing both the progress of the psychotherapy and whether Applicant is able to practice with reasonable skill and safety for his clients, and must send a copy of each report to the Applicant. The therapist must submit his/her first report by the fifth day of the month following the first month of the psychotherapy. The therapist shall submit subsequent reports by the fifth day of every month thereafter for the first 12 months. After submission of the first 12 reports, unless otherwise ordered by the Board, the therapist shall submit reports by the fifth day of every third month (i.e., on a quarterly basis) until the therapy is completed; and
- c. In the first report, the therapist shall state that s/he has received and read a copy of this Order, the Board's file, and must state that s/he understands and agrees to the duties and responsibilities s/he is undertaking as Applicant's therapist.

13. If, at any time, the therapist is of the opinion that Applicant is practicing professional counseling in a manner that does not meet the generally accepted standards of practice or has a condition that renders him unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming his/her opinion. The therapist shall send a copy of such report to the Applicant when s/he sends the report to the Board. Upon submission of such a report, the Board will make the determination as to whether or not Applicant is able to practice with reasonable skill and safety and whether emergency action should be taken under §§24-4-104 and 12-43-224(2)(c)(II), C.R.S.

14. Either Applicant or his therapist may terminate the therapeutic relationship upon written notice to the other and the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. If Applicant does not have another Board-approved therapist prior to the termination date, Applicant shall cease the practice of professional counseling

until he has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with Applicant and report to the Board in accordance with this Order.

15. Applicant cannot practice professional counseling during the period of probation, and must cease practice, if he is not undergoing psychotherapy in accordance with this Order, unless otherwise provided by the Board based on the recommendations of the therapist.

ABSTINENCE FROM ADDICTIVE SUBSTANCES

16. During the period of probation, Applicant shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed or prescribed by an authorized person other than Applicant. Applicant shall use such habit-forming drug, controlled substance, or alcoholic beverage only as directed by such authorized person and only for the condition identified by such authorized person.

17. Applicant agrees to random urinalysis testing monitored and administered by a Board-approved agency to insure compliance with this Order. Applicant shall submit to urinalysis testing, monitored and administered by a Board-approved agency, on randomly-selected days on a frequency to be determined by Applicant's therapist and approved by the Board, but no less than once each month. Applicant shall sign a release and/or execute any necessary waiver to ensure that the therapist may report his progress and compliance with this Order to the Board.

AUTOMATIC REVOCATION

18. If, at any time during the probation period, the Board has reasonable grounds to believe that Applicant violated any term of this Order or committed any act or omission which constitutes grounds for disciplinary action under section §12-43-222, C.R.S., the Board may revoke Applicant's LPC license. Such revocation shall be effective three (3) days after the date of mailing the notice of revocation to Applicant by first-class mail to Applicant's address of record with the Board. Such notice of revocation shall set forth the grounds for the Board's action. Applicant has the responsibility to notify the Board of any change of address.

- a. Within ten (10) days of the effective date of the revocation, Applicant may request a formal hearing, as provided by section §24-4-105, C.R.S. The sole issue at such hearing shall be limited to the issues identified in the notice of the revocation. The parties agree that this procedure shall satisfy all of Applicant's entitlements to due process of law.
- b. If, at a hearing on issues in the notice of revocation, the Board fails to meet its burden of proof to establish facts as described in this paragraph, then Applicant's license shall not be revoked and this Order shall remain operative and in full force and effect.

TERMS AND CONDITIONS

19. Applicant will strictly observe the prohibitions set forth in the Mental Health Practice Act, §12-43-101 *et. seq.*, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

20. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing any mental health services, unless such supervision or consultation is monitored in accordance with this Order.

21. All expenses incurred or associated with the practice evaluation, therapy evaluation, therapy, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

22. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

23. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

24. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

25. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

26. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

27. Applicant shall obey all municipal, state and federal laws while this Order is in effect.

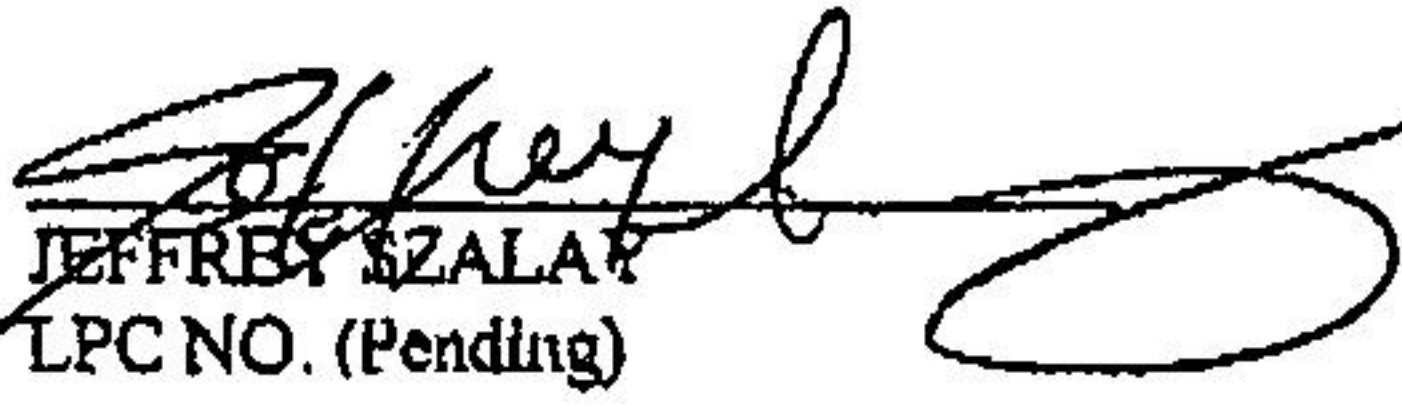
28. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

29. This Order shall become effective when accepted and signed on behalf of the Board.

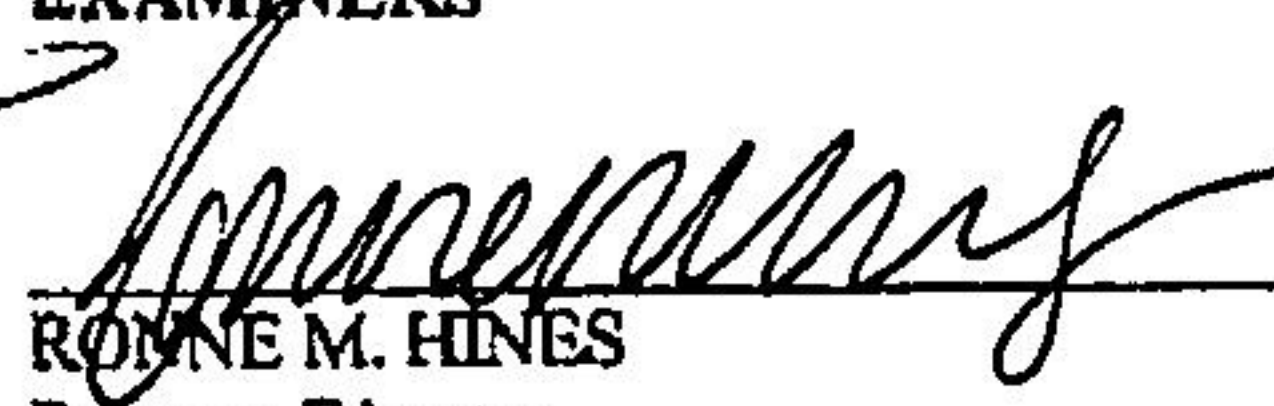
30. This Order shall be admissible as evidence at any hearing held before the Board.

31. This Order shall be a public record in the custody of the Board.

APPLICANT


JEFFREY SZALAZ
LPC NO. (Pending)

**COLORADO STATE BOARD OF
PROFESSIONAL COUNSELOR
EXAMINERS**


RONNE M. HINES
Program Director

Dated: 4/20/2012

Effective Date: This 20th day of
April, 2012.